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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **OFFICER SANTIAGO MEZA-GONZALEZ #023295, INDIVIDUALLY; OFFICER JOSE MELANO #023054, INDIVIDUALLY; STATE OF CALIFORNIA; AND DOES 1-10, INCLUSIVE,** Defendants.	Case No. 26CV168913 **PLAINTIFF'S REPLY IN SUPPORT OF MOTION FOR U-VISA CERTIFICATION** Date: June 18, 2026 Time: 2:30 p.m. Dept: 518 Judge: The Honorable Mark Fickes Action Filed: February 4, 2026 Trial Date: None Set

I. INTRODUCTION

Defendants' Opposition rests on three legal errors and a misreading of the record. First, it equates “qualifying criminal activity” with “actual criminal prosecution”—a conflation the U-visa statute, its implementing regulations, and binding USCIS guidance squarely reject. Second, it treats this Court as somehow disabled from certifying Form I-918, Supplement B simply because the action is denominated “civil,” even though Congress and the California Legislature expressly designated judges as certifying officials in precisely such proceedings. Third, it dismisses the officers’ conduct as failing to “rise to the seriousness” of qualifying offenses, while ignoring that the federal statute itself enumerates false imprisonment, obstruction of justice, perjury, and felonious assault as qualifying crimes.

The Opposition is a strawman. Plaintiff does not ask this Court to render a criminal judgment, to convict anyone, or to substitute itself for a prosecutor. Plaintiff asks only for what

federal law and California Penal Code section 679.10 expressly authorize: a judicial certification, based on the evidence already in the record, that he is the victim of qualifying criminal activity and has been helpful in its detection and investigation. The California Highway Patrol—the very agency whose officers perpetrated the qualifying activity—has refused to certify. That refusal is precisely why judicial certification exists.

For the reasons set forth below, the Opposition should be rejected, and the Motion should be granted in full.

II. ARGUMENT

This Court need not decide ultimate civil liability to grant the Motion; it need only determine whether the current record provides a sufficient basis to certify victim status and helpfulness on Form I-918, Supplement B.

A. The Opposition Misstates the Legal Standard: U-Visa Certification Requires Neither a Conviction, Pending Charges, nor an Open Investigation

1. The Statute and Regulations Are Unambiguous.

The U-visa certification standard is set by federal regulation. The certifying official's role is to attest that the applicant "is a victim of qualifying criminal activity" and "has been helpful, is being helpful, or is likely to be helpful" in its detection, investigation, or prosecution. (8 C.F.R. § 214.14(a)(12).) The regulation defines "investigation or prosecution" expansively to include "the detection, investigation, prosecution, conviction, or sentencing of qualifying criminal activity." (Id.)

Nowhere does the statute or regulation require a pending criminal case, a filed charging document, an active investigation, or a conviction. To the contrary, the same regulation provides that "the certifying official is not required to certify that a crime actually occurred. The certifying official certifies that the applicant is a victim of criminal activity and was helpful." (8 C.F.R. § 214.14(a)(12).) The certification function is, by design, a ministerial attestation—not a criminal adjudication.

2. USCIS's Own Authoritative Guidance Resolves the Question.

The U.S. Citizenship and Immigration Services U Visa Law Enforcement Resource Guide—the document that governs federal agencies in the certification process—removes any doubt: "Charges do not have to be filed, nor does an investigation or prosecution need to be open or completed in order to provide a Form I-918, Supplement B for the victim. A current investigation, the filing of charges, a prosecution, or a conviction are not required." (USCIS, U Visa Law Enforcement Resource Guide (2019), at p. 5.)

Defendants do not cite, distinguish, or acknowledge that guidance. They cite no authority—none—holding that a pending criminal case is a prerequisite to certification, because none exists. Their position would import a requirement Congress did not enact and the agency charged with administering the program has expressly disclaimed.

3. The Subsection Citation Issue Is Immaterial to the Underlying Principle.

Defendants devote a substantial portion of their Opposition to reciting the text of 8 C.F.R. section 214.14(a)(14)(ii) and faulting the Motion for citing it. (Opp. at 3:25–4:10.) To be transparent: the proposition that "the absence of criminal charges, or even the refusal by law enforcement to file charges, is not disqualifying" rests on 8 C.F.R. section 214.14(a)(12) and the USCIS guidance quoted above—not on subsection (a)(14)(ii). To the extent the Motion's citation to (a)(14)(ii) caused confusion, Plaintiff respectfully clarifies the controlling authority.

But Defendants gain nothing from the correction. The underlying legal point is unchanged: U-visa certification does not require a filed criminal case or a conviction. Defendants cite no authority for the contrary proposition. And the very regulation Defendants quoted in their Opposition—8 C.F.R. section 214.14(a)(14)(ii)—is itself harmful to their position: it confirms that obstruction of justice and perjury are qualifying offenses where the petitioner is "directly and proximately harmed" and the perpetrator acted to "avoid or frustrate efforts to investigate, arrest, prosecute, or otherwise bring to justice the perpetrator for other criminal activity" or "to further the perpetrator's abuse or exploitation of or undue control over the petitioner through

manipulation of the legal system." (8 C.F.R. § 214.14(a)(14)(ii)(B)(1)–(2).) That is precisely what the record before this Court shows. (See § II.B.2, infra.)

B. The Officers' Conduct Constitutes Expressly Enumerated Qualifying Criminal Activity Under 8 U.S.C. § 1101(a)(15)(U)(iii)

Defendants insist the conduct alleged does not "rise to the seriousness" of qualifying offenses and gesture toward "murder, rape, and human trafficking." (Opp. at 4:8–10.) The argument cannot survive a comparison between the conduct alleged and the federal list. The statute enumerates a far broader range of qualifying offenses, including "felonious assault," "false imprisonment," "unlawful criminal restraint," "obstruction of justice," "perjury," and "any similar activity." (8 U.S.C. § 1101(a)(15)(U)(iii).) Each of these is identified on the Form I-918, Supplement B Plaintiff submitted to the Court. The "seriousness" of conduct is a question of statutory inclusion, not of comparative atrocity—Congress already answered the seriousness question when it placed these offenses on the list.

1. False Imprisonment and Unlawful Criminal Restraint.

Officers physically seized Plaintiff, handcuffed him, placed him in a patrol vehicle, transported him to a detention facility, and confined him from November 1 through November 5, 2024. The CHP's own Detention Certificate (Dublin CHP-01991, issued under Penal Code section 851.6) recharacterizes the entire episode as "a detention only, not an arrest" and certifies "insufficient grounds for making a criminal complaint." That official document—issued by the very agency whose officers Plaintiff sues—is documentary evidence that the restraint was unlawful from its inception. False imprisonment and unlawful criminal restraint are enumerated qualifying offenses. (8 U.S.C. § 1101(a)(15)(U)(iii).)

2. Obstruction of Justice and Perjury.

The record contains a sworn affidavit submitted by Officer Meza-Gonzalez to a magistrate to obtain a warrant authorizing the forcible extraction of Plaintiff's blood. The dashcam recording

(Motion, Exh. A) contradicts the material assertions in that affidavit. Upon picking up and smelling the cup the officers had initially speculated contained alcohol, Officer Melano declared, on the audio at 00:58:51 and again at 00:58:59 and 00:59:04: "Is it water? No this is piss. This is pee. . . . I'm telling you it's piss. It smells like piss. . . . Yeah, I'm telling you it's piss." The cup-based suspicion of alcohol was thereby affirmatively dispelled by the officers themselves. Neither officer can be heard verbalizing any contemporaneous odor of alcohol from Plaintiff's person or breath at any point in the recording, and Plaintiff is observed throughout as calm, coherent, and cooperative. The CHP arrest report nonetheless asserts an odor of alcohol on Plaintiff's breath. On the current record, that affidavit—materially contradicted by the officers' own contemporaneous audio—was used to procure a search warrant for a bodily intrusion and to support an extended parole hold.

The downstream consequences anchor the U-visa scheme's "substantial . . . abuse" element to a concrete, life-altering injury. (8 U.S.C. § 1101(a)(15)(U)(i)(I).) The same fabricated probable cause that produced the forcible blood draw and the five-day confinement also generated the chemical-test-refusal allegation that triggered the suspension of Plaintiff's Class A commercial driver's license—the foundation of his livelihood as a journeyman truck driver—with documented lost wages approximating $112,000 over the year that followed. (See Mot., Decl. of Newanforbi ¶ 4.) The qualifying criminal activity thus operated as the precipitating cause of severe and quantifiable economic and professional harm directly traceable to the officers' conduct.

That conduct fits squarely within the regulatory definition Defendants themselves quoted in their Opposition: Plaintiff is the "petitioner [who] has been directly and proximately harmed by the perpetrator" of obstruction of justice and perjury, and the perpetrator acted "as a means" to "manipulat[e] the legal system" to further the officers' "undue control over" Plaintiff. (8 C.F.R. § 214.14(a)(14)(ii)(B).) Obstruction of justice and perjury are enumerated qualifying offenses. (8 U.S.C. § 1101(a)(15)(U)(iii).)

3. Felonious Assault and Battery.

A forcible bodily intrusion—a mandatory blood extraction by a phlebotomist at the direction of officers, accomplished under a warrant obtained through material misrepresentations—is a battery under California law. (See Pen. Code, §§ 240, 242; see also Veh. Code, § 23612 [implied-consent framework does not authorize forcible extraction absent a valid warrant or qualifying circumstance].) Plaintiff did not consent. Felonious assault is an enumerated qualifying offense. (8 U.S.C. § 1101(a)(15)(U)(iii).)

4. The "Seriousness" Argument Is Foreclosed by the Statutory Text.

Defendants' suggestion that only crimes "such as murder, rape, and human trafficking" can support certification is unsupported by any authority. Congress chose to include a far broader list, and the offenses Plaintiff identifies—false imprisonment, unlawful criminal restraint, felonious assault, obstruction of justice, and perjury—are each expressly named. (8 U.S.C. § 1101(a)(15)(U)(iii).) Whether the listed offenses occurred is a factual question for the certifying court; whether they are sufficiently serious to qualify is an answer Congress provided when it placed them on the list. Defendants' invitation to substitute their preferred shortlist for the statutory enumeration must be declined.

C. Judges Presiding Over Civil Proceedings Are Expressly Authorized—and in California, Statutorily Obligated—to Certify

Defendants' core position—that "a civil lawsuit does not establish the existence of criminal activity" and "is not the same as a criminal prosecution" (Opp. at 4:5–11)—conflates two unrelated propositions. Plaintiff does not ask this Court to convict anyone or to render a criminal-law judgment. He asks the Court to perform the discrete certification function that federal and state law expressly assign to judges.

1. Federal Law: 8 U.S.C. § 1101(a)(15)(U)(i)(III).

The statute defines a "certifying official" to include "a Federal, State, or local law enforcement official, prosecutor, judge, or other authority, that has responsibility for the

detection, investigation, prosecution, conviction, or sentencing of qualifying criminal activity." (8 U.S.C. § 1101(a)(15)(U)(i)(III).) Congress included judges among the listed officials, and it did not limit judicial certification to criminal proceedings. The disjunctive language—"detection, investigation, prosecution, conviction, or sentencing"—is deliberate; a judge presiding over a civil proceeding in which the qualifying criminal activity is documented and exposed has "responsibility" for the "detection" and "investigation" of that activity within the statutory meaning.

2. State Law: California Penal Code § 679.10.

California codifies the same authority and adds a statutory duty. Section 679.10(a)(1) defines "certifying entity" to include "a judge." Section 679.10(b) requires that a certifying entity, "upon the request of a victim, and within a reasonable time after the request, . . . certify victim helpfulness on the Form I-918B in any case in which the victim was a victim of a qualifying crime . . . and the victim was helpful, is being helpful, or is likely to be helpful in the detection or investigation or prosecution of that qualifying crime." Section 679.10(k) provides that a certifying official "shall not withhold, or threaten to withhold, certification" on improper grounds. The Legislature thus did not merely authorize judicial certification; it imposed an affirmative obligation.

3. Defendants' Categorical Rule Would Nullify Judicial Certification Precisely Where It Is Most Needed.

If Defendants are correct that civil proceedings cannot support certification, then judges are effectively excluded from the certifying function except in the narrow class of criminal cases in which they preside over prosecutions of the very crimes that form the U-visa claim. That construction (i) writes "judge" out of the federal statute in nearly every case in which judicial certification would matter; (ii) leaves an immigrant victim of police misconduct with no avenue when the offending agency declines to certify; and (iii) directly contradicts the California Legislature's affirmative inclusion of judges among certifying entities. A construction that

nullifies an express legislative inclusion is disfavored. (Code Civ. Proc., § 1858 ["where there are several provisions or particulars, such a construction is, if possible, to be adopted as will give effect to all"]; see Williams v. Superior Court (1993) 5 Cal.4th 337 ["An interpretation that renders statutory language a nullity is obviously to be avoided"].)

The very fact that Defendants advance this argument illustrates why judicial certification is necessary here. CHP—Plaintiff's perpetrator—refused to certify. If certifying judges in civil proceedings are barred from acting, then the agency that committed the qualifying criminal activity holds a unilateral power to insulate itself from U-visa accountability. Congress did not enact such a perverse rule, and the California Legislature took pains to foreclose it in section 679.10.

D. Plaintiff Has Satisfied the Helpfulness Requirement Through Documented Cooperation With Judicial and Administrative Authorities

Defendants assert that Plaintiff cannot be "helpful to an investigation that does not exist." (Opp. at 3:23.) The assertion is incorrect both as a matter of law and as a matter of record.

1. "Helpfulness" Is Construed Broadly.

The regulations define helpfulness to include assistance to "a Federal, State, or local law enforcement official, prosecutor, judge, or other authority in the investigation or prosecution of the criminal activity." (8 C.F.R. § 214.14(b)(3).) "Investigation or prosecution" is itself defined expansively to include "detection, investigation, prosecution, conviction, or sentencing." (8 C.F.R. § 214.14(a)(12).) The regulations contain no requirement that an open criminal docket exist before helpfulness can attach.

2. The Civil Action Has Produced Objective Evidence of the Qualifying Activity.

The most consequential evidence of officer misconduct in this case—the dashcam recording capturing the officers' contemporaneous statements, the absence of any odor-of-alcohol observation, and the contradiction between the recording and the warrant affidavit—exists in the

public record only because Plaintiff obtained and preserved it. The Detention Certificate became a documentary record only because Plaintiff requested it. The CHP arrest report's internal contradictions are exposed only because Plaintiff obtained and produced the underlying audio. These are exactly the kinds of "detection" activities the regulation contemplates. (8 C.F.R. § 214.14(a)(12).)

3. Plaintiff Has Cooperated With Multiple Authorities.

Plaintiff's helpfulness extends well beyond the present action. He filed a Government Tort Claim with the California Government Claims Program, formally notifying the State of the qualifying activity and providing it an opportunity to investigate. He participated in DMV administrative proceedings under penalty of perjury concerning the same conduct. He gathered, authenticated, and produced the dashcam recording, the CHP arrest and investigation reports, the Detention Certificate, and the warrant affidavit. He requested certification from CHP itself—the agency whose officers gave rise to the claim—and complied with that agency's process. He pursued a POST/CHP internal-affairs complaint, which is now under investigation by Sergeant Eric Dutra of the Dublin Area office. Each of those steps is an act of cooperation with a governmental authority. And critically, these civil and administrative avenues are, at present, the only mechanisms of detection and investigation reasonably available to Plaintiff—precisely because the CHP, whose own officers' conduct supplies the qualifying activity, has declined to initiate any criminal probe of those officers.

4. The CHP's Refusal to Certify Reinforces Rather Than Defeats Certification.

The Opposition treats the absence of agency certification as a reason this Court should not certify. The opposite is true. Section 679.10(b) imposes a mandatory duty on certifying entities, and section 679.10(k) prohibits withholding certification on improper grounds. When the agency that perpetrated the qualifying activity declines to perform that duty, judicial certification is the statutory backstop. Allowing the offending agency to act as the sole gatekeeper for its own victim's relief would defeat the protective purpose of the U-visa scheme and would write section

679.10(k) out of the statute.

III. CONCLUSION

The Opposition cites no authority for its core premise—that civil proceedings can never support certification—because none exists. The U-visa certification standard requires neither a conviction, a pending prosecution, nor an open investigation. It requires a determination, on the current record, that the applicant is the victim of qualifying criminal activity and has been helpful.

That record—the dashcam recording, the CHP arrest report, the Penal Code section 851.6 Detention Certificate, the warrant affidavit, and the documented economic and personal harm flowing from the officers' conduct—provides ample basis for the limited findings the certification scheme requires. Plaintiff respectfully requests that this Court (i) deny the Opposition; (ii) grant the Motion for U-Visa Certification in full; (iii) make the findings required by 8 U.S.C. section 1101(a)(15)(U)(i) and California Penal Code section 679.10; and (iv) execute Parts 2 and 6 of Form I-918, Supplement B.

Dated: June 8, 2026

Respectfully submitted,

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BRENDAN NGEHSI NEWANFORBI

Plaintiff In Pro Per

DECLARATION OF SERVICE BY E-MAIL

Case Name: Brendan N. Newanforbi v. Officer Santiago Meza-Gonzalez, et al.

Case Number: 26CV168913

I, BRENDAN NGEHSI NEWANFORBI, declare as follows:

1. I am the Plaintiff in the above-captioned action and am over the age of 18. I am proceeding in pro per.

2. My residence address is 1455 Cat Tail Drive, Stockton, California 95204. My electronic service address is BNN.CDL@gmail.com.

3. On June 8, 2026, I electronically served the following document:

a. PLAINTIFF'S REPLY IN SUPPORT OF MOTION FOR U-VISA CERTIFICATION.

4. I electronically served the aforementioned document by emailing it to the following individuals at the email addresses listed on Defendants' Opposition and prior service papers in this matter:

Haiyang A. Li, Deputy Attorney General
E-mail: Haiyang.Li@doj.ca.gov

Adriana Zagal
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Office of the Attorney General of California
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Los Angeles, CA 90013-1230

Attorneys for Defendants State of California, California Highway Patrol, Santiago Meza-Gonzalez, and Jose Melano

5. The above-listed counsel and authorized service designees have appeared via electronic service in this matter and have served papers on Plaintiff electronically at BNN.CDL@gmail.com. (See Defs.' Opp. to Mot. for U-Visa Cert., Decl. of Service by E-Mail (June 5, 2026); [Proposed] Order re Stipulation for Stay, Decl. of Service by E-Mail (Apr. 14, 2026).)

I declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing is true and correct.

Executed on June 8, 2026, at Stockton, California.

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BRENDAN NGEHSI NEWANFORBI

Plaintiff In Pro Per